

His "day in court"

Charles Egbert Craddock

An abstract geometric pattern composed of various magenta shapes, including straight lines, arcs, and triangles, set against a solid cyan background. The pattern is dense and covers the lower two-thirds of the page.

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An abstract geometric pattern featuring a cyan background with magenta shapes. The shapes include a large 'X' formed by two triangles, several curved lines, and straight lines of varying lengths and orientations, creating a complex, layered design.

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HIS “DAY IN COURT”

By Charles Egbert Craddock

1895

It had been a hard winter along the slopes of the Great Smoky Mountains, and still the towering treeless domes were covered with snow, and the vagrant winds were abroad, rioting among the clifty heights where they held their tryst, or raiding down into the sheltered depths of the Cove, where they seldom intruded. Nevertheless, on this turbulent rush was borne in the fair spring of the year. The fragrance of the budding wild-cherry was to be discerned amidst the keen slanting javelins of the rain. A cognition of the renewal and the expanding of the forces of nature pervaded the senses as distinctly as if one might hear the grass growing, or feel along the chill currents of the air the vernal pulses thrill. Night after night in the rifts of the breaking clouds close to the horizon was glimpsed the stately sidereal Virgo, prefiguring and promising the harvest, holding in her hand a gleaming ear of corn. But it was not the constellation which the tumultuous torrent at the mountain's base reflected in a starry glitter. From the hill-side above a light cast its broken image among the ripples, as it shone for an instant through the bosky laurel, white, stellar, splendid—only a tallow dip suddenly placed in the window of a log-cabin, and as suddenly withdrawn.

For a gruff voice within growled out a remonstrance: “What ye doin' that fur, Steve? Hev that thar candle got enny call ter bide in that thar winder?”

The interior, contrary to the customary aspect of the humble homes of the region, was in great disarray. Cooking utensils stood uncleared about the hearth; dishes and bowls of earthen-ware were assembled upon the table in such numbers as to suggest that several meals had been eaten without the ceremony of laying the cloth anew, and that in default of washing the crockery it had been re-enforced from the shelf so far as the limited store

might admit. Saddles and spinning-wheels, an ox-yoke and trace-chains, reels and wash-tubs, were incongruously pushed together in the corners. Only one of the three men in the room made any effort to reduce the confusion to order. This was the square-faced, black-bearded, thick-set young fellow who took the candle from the window, and now advanced with it toward the hearth, holding it at an angle that caused the flame to swiftly melt the tallow, which dripped generously upon the floor.

“I hev seen Eveliny do it,” he said, excitedly justifying himself. “I noticed her sot the candle in the winder jes' las' night arter supper.” He glanced about uncertainly, and his patience seemed to give way suddenly. “Dad-burn the old candle! I dunno *whar* ter set it,” he cried, desperately, as he flung it from him, and it fell upon the floor close to the wall.

The dogs lifted their heads to look, and one soft-stepping old hound got up with the nimbleness of expectation, and, with a prescient gratitude astir in his tail, went and sniffed at it. His aspect drooped suddenly, and he looked around in reproach at Stephen Quimbey, as if suspecting a practical joke. But there was no merriment in the young mountaineer's face. He threw himself into his chair with a heavy sigh, and desisted for a time from the unaccustomed duty of clearing away the dishes after supper.

“An' 'ain't ye got the gumption ter sense what Eveliny sot the candle in the winder fur?” his brother Timothy demanded, abruptly—“ez a sign ter that thar durned Abs'lom Kittredge.”

The other two men turned their heads and looked at the speaker with a poignant intensity of interest. “I 'lowed ez much when I seen that light ez I war a-kemin' home las' night,” he continued; “it shined spang down the slope acrost the ruver an' through all the laurel; it looked plumb like a star that hed fell ter yearth in that pitch-black night. I dun-no how I s'picioned it, but ez I stood thar an' gazed I knowed somebody war a-standin' an' gazin' too on the foot-bredg a mite ahead o' me. I couldn't see him, an' he couldn't turn back an' pass me, the bredg bein' too narrer. He war jes obligated ter go on. I hearn him breathe quick; then—pit-pat, pit-pat, ez he walked straight toward that light. An' he be 'bleeged ter hev hearn me, fur arter I crost I stopped. Nuthin'. Jes' a whisper o' wind, an' jes' a swishin' from the ruver. I knowed then he hed turned off inter the laurel. An' I went on, a-whistlin' ter make him 'low ez I never s'picioned nuthin'. An' I kem inter the

house an' tole dad ez he'd better be a-lookin' arter Eveliny, fur I b'lieved she war a-settin' her head ter run away an' marry Abs'lom Kittredge."

"Waal, I ain't right up an' down sati'fied we oughter done what we done," exclaimed Stephen, fretfully. "It don't 'pear edzacly right fur three men ter fire on one."



"OLD JOEL QUIMBEY"

Old Joel Quimbey, in his arm-chair in the chimney-corner, suddenly lifted his head—a thin head with fine white hair, short and sparse, upon it. His thin, lined face was clear-cut, with a pointed chin and an aquiline nose.

He maintained an air of indignant and rebellious grief, and had hitherto sat silent, a gnarled and knotted hand on either arm of his chair. His eyes gleamed keenly from under his heavy brows as he turned his face upon his sons. "How could we know thar warn't but one, eh?"

He had not been a candidate for justice of the peace for nothing; he had absorbed something of the methods and spirit of the law through sheer propinquity to the office. "We-uns wouldn't be persumed ter *know*." And he ungrudgingly gave himself all the benefit of the doubt that the law accords.

"That's a true word!" exclaimed Stephen, quick to console his conscience. "Jes' look at the fac's, now. We-uns in a plumb black midnight hear a man a-gittin' over our fence; we git our rifles; a-peekin' through the chinkin' we ketch a glimge o' him—"

"Ha!" cried out Timothy, with savage satisfaction, "we seen him by the light she set her head him on!"

He was tall and lank, with a delicately hooked nose, high cheek-bones, fierce dark eyes, and dark eyebrows, which were continually elevated, corrugating his forehead. His hair was black, short and straight, and he was clad in brown jeans, as were the others, with great cowhide boots reaching to the knee. He fixed his fiery intent gaze on his brother as the slower Stephen continued, "An' so we blaze away—"

"An' one durned fool's so onlucky ez ter hit him an' not kill him," growled Timothy, again interrupting. "An' so whilst Eveliny runs out a-screamin', 'He's dead! he's dead!—ye hev shot him dead!' we-uns make no doubt but he *is* dead, an' load up agin, lest his frien's mought rush in on we-uns whilst we hedn't no use o' our shootin'-irons. An' suddint—ye can't hear nuthin' but jes' a owel hoot-in' in the woods, or old Pa'son Bates's dogs a-howlin' acrost the Cove. An' we go out with a lantern, an' thar's jes' a pool o' blood in the dooryard, an' bloody tracks down ter the laurel."

"Eveliny gone!" cried the old man, smiting his hands together; "my leetle darter! The only one ez never gin me enny trouble. I couldn't hev made out ter put up with this hyar worl' no longer when my wife died ef it hedn't been fur Eveliny. Boys war wild an' mischeevous, an' folks outside don't keer nuthin' 'bout ye—ef they *war* ter 'lect ye ter office 'twould be ter keep some other feller from hevin' it, 'kase they 'spise him more'n ye. An' hyar she's runned off an' married old Tom Kittredge's gran'son, Josiah Kittredge's son—when our folks 'ain't spoke ter none o' 'em fur fifty year—Josiah

Kittredge's son—ha! ha! ha!” He laughed aloud in tuneless scorn of himself and of this freak of froward destiny and then fell to wringing his hands and calling upon Evelina.

The flare from the great chimney-place genially played over the huddled confusion of the room and the brown logs of the wall, where the gigantic shadows of the three men mimicked their every gesture with grotesque exaggeration. The rainbow yarn on the warping bars, the strings of red-pepper hanging from the ceiling, the burnished metallic flash from the guns on their racks of deer antlers, served as incidents in the monotony of the alternate yellow flicker and brown shadow. Deep under the blaze the red coals pulsated, and in the farthest vistas of the fire quivered a white heat.

“Old Tom Kittredge,” the father resumed, after a time, “he jes' branded yer gran'dad's cattle with his mark; he jes' cheated yer gran'dad, my dad, out'n six head o' cattle.”

“But then,” said the warlike Timothy, not willing to lose sight of reprisal even in vague reminiscence, “he hed only one hand ter rob with arter that, fur I hev hearn ez how when gran'dad got through with him the doctor hed ter take his arm off.”

“Sartainly, sartainly,” admitted the old man, in quiet assent. “An' Josiah Kittredge he put out the eyes of a horse critter o' mine right thar at the court-house door—”

“Waal, arterward, we-uns fired his house over his head,” put in Tim.

“An' Josiah Kittredge an' me,” the old man went on, “we-uns clinched every time we met in this mortal life. Every time I go past the graveyard whar he be buried I kin feel his fingers on my throat. He had a nervy grip, but no variation; he always tuk holt the same way.”

“Tears like ter me ez 'twar a fust-rate time ter fetch out the rifles again,” remarked Tim, “this mornin', when old Pa'son Bates kem up hyar an' 'lowed ez he hed married Eveliny ter Abs'lom Kittredge on his death-bed; 'So be, pa'son,' I say. An' he tuk off his hat an' say, 'Thank the Lord, this will heal the breach an' make ye frien's!' An' I say, 'Edzacly, pa'son, ef it *air* Abs'lom's deathbed; but them Kittredges air so smilin' an' deceiv-in' I be powerful feared he'll cheat the King o' Terrors himself. I'll forgive 'em ennything—*over his grave?*”

“Pa'son war tuk toler'ble suddint in his temper,” said the literal Steve. “I hearn him call yer talk onchristian, cussed sentiments, ez he put out.”

“Ye mus' keep up a Christian sperit, boys; that's the main thing,” said the old man, who was esteemed very religious, and a pious Mentor in his own family. He gazed meditatively into the fire. “What ailed Eveliny ter git so tuk up with this hyar Abs'-lom? What made her like him?” he propounded.

“His big eyes, edzacly like a buck's, an' his long yaller hair,” sneered the discerning Timothy, with the valid scorn of a big ugly man for a slim pretty one. “‘Twar jes 'count o' his long yaller hair his mother called him Abs'lom. He war named Pete or Bob, I disremember what—suthin' common—till his hair got so long an' curly, an' he sot out ter be so plumb all-fired beautiful, an' his mother named him agin; this time Abs'lom, arter the king's son, 'count o' his yaller hair.”

“Git hung by his hair some o' these days in the woods, like him the Bible tells about; that happened ter the sure-enough Abs'lom,” suggested Stephen, hopefully.

“Naw, sir,” said Tim; “when Abs'lom Kittredge gits hung it 'll be with suthin' stronger'n hair; he'll stretch hemp.” He exchanged a glance of triumphant prediction with his brother, and anon gazed ruefully into the fire.

“Ye talk like ez ef he war goin' ter live, boys,” said old Joel Quimbey, irritably. “Pa'son 'lowed he war powerful low.”

“Pa'son said he'd never hev got home alive 'thout she'd holped him,” said Stephen. “She jes' tuk him an' drug him plumb ter the bars, though I don't see how she done it, slim leetle critter ez she be; an' thar she holped him git on his beastis; an' then—I declar' I feel ez ef I could kill her fur a-demeanin' of herself so—she led that thar horse, him a-ridin' an' a-leanin' on the neck o' the beastis, two mile up the mountain, through the night.”

“Waal, let her bide thar. I'll look on her face no mo',” declared the old man, his toothless jaw shaking. “Kittredge she be now, an' none o' the name kin come a-nigh me. How be I ever a-goin' 'bout 'mongst the folks at the settlement agin with my darter married ter a Kittredge? How Josiah an' his dad mus' be a-grinnin' in thar graves at me this night! An' I 'low they hev got suthin' ter grin about.”

And suddenly his grim face relaxed, and once more he began to smite his hands together and to call aloud for Evelina.

Timothy could offer no consolation, but stared dismally into the fire, and Stephen rose with a sigh and addressed himself to pushing the spinning-wheels and tubs and tables into the opposite corner of the room, in the hope of solving the enigma of its wonted order.

It seemed to Evelina afterward that when she climbed the rugged ways of the mountain slope in that momentous night she left forever in the depths of the Cove that free and careless young identity which she had been. She did not accurately discriminate the moment in which she began to realize that she was among her hereditary enemies, encompassed by a hatred nourished to full proportions and to a savage strength long before she drew her first breath. The fact only gradually claimed its share in her consciousness as the tension of anxiety for Absalom's sake relaxed, for the young mountaineer's strength and vitality were promptly reasserted, and he rallied from the wound and his pallid and forlorn estate with the recuperative power of the primitive man. By degrees she came to expect the covert unfriendly glances his brother cast upon her, the lowering averted mien of her sister-in-law, and now and again she surprised a long, lingering, curious gaze in his mother's eyes. They were all Kittredges! And she wondered how she could ever have dreamed that she might live happily among them—one of them, for her name was theirs. And then perhaps the young husband would stroll languidly in, with his long hair curling on his blue jeans coat-collar, and an assured smile in his dark brown eyes, and some lazy jest on his lips, certain of a welcoming laugh, for he had been so near to death that they all had a sense of acquisition in that he had been led back. For his sake they had said little; his mother would busy herself in brewing his “yerb” tea, and his brother would offer to saddle the mare if he felt that he could ride, and they would all be very friendly together; and his alien wife would presently slip out unnoticed into the “gyarden spot,” where the rows of vegetables grew as they did in the Cove, turning upon her the same neighborly looks they wore of yore, and showing not a strange leaf among them. The sunshine wrapped itself in its old fine gilded gossamer haze and drowsed upon the verdant slopes; the green jewelled “Juny-bugs” whirred in the soft air; the mould was as richly brown as in Joel Quimbey's own enclosure; the flag-lilies bloomed beside the onion bed; and the woolly green leaves of the sage wore their old delicate tint and gave out a familiar odor.

Among this quaint company of the garden borders she spent much of her time, now hoeing in a desultory fashion, now leaning on the long handle of the implement and looking away upon the far reaches of the purple mountains. As they stretched to vague distances they became blue, and farther on the great azure domes merged into a still more tender hue, and this in turn melted into a soft indeterminate tint that embellished the faint horizon. Her dreaming eyes would grow bright and wistful; her rich brown curling hair, set free by the yellow sun-bonnet that slipped off her head and upon her shoulders, would airily float backward in the wind; there was a lithe grace in the slender figure, albeit clad in a yellow homespun of a deep dye, and the faded purplish neckerchief was caught about a throat fairer even than the fair face, which was delicately flushed. Absalom's mother, standing beside Peter, the eldest son, in the doorway, watched her long one day.

“It all kem about from that thar bran dance,” said Peter, a homely man, with a sterling, narrow-minded wife and an ascetic sense of religion. “Thar Satan waits, an' he gits nimbler every time ye shake yer foot. The fiddler gin out the figger ter change partners, an' this hyar gal war dancin' opposite Abs'lom, ez hed never looked nigh her till that day. The gal didn't know *what* ter do; she jes' stood still; but Abs'lom he jes' danced up ter her ez keerless an' gay ez he always war, jes' like she war ennybody else, an' when he held out his han' she gin him hern, all a-trembly, an' lookin' up at him, plumb skeered ter death, her eyes all wide an' sorter wishful, like some wild thing trapped in the woods. An' then the durned fiddler, moved by the devil, I'll be be bound, plumb furgot ter change 'em back. So they danced haf'n the day tergether. An' arter that they war forever a-stealin' off an' accidentally meetin' at the spring, an' whenst he war a-huntin' or she drivin' up the cow, an' a-courtin' ginerally, till they war promised ter marry.”

“'Twarn't the bran dance; 'twar suthin' ez fleet-in' an' ez useless,” said his mother, standing in the door and gazing at the unconscious girl, who was leaning upon the hoe, half in the shadow of the blooming laurel that crowded about the enclosure and bent over the rail fence, and half in the burnished sunshine; “she's plumb beautiful—thar's the snare ez tangled Abs'lom's steps. I never 'lowed ter see the day ez could show enny comfort fur his dad bein' dead, but we hev been spared some o' the tallest cavortin' that ever war seen sence the Big Smoky war built. Sometimes it plumb skeers me ter think ez we-uns hev got a Quimbey abidin' up hyar along o'

we-uns in *his* house an' a-callin' o' herse'f Kittredge. I looks ter see him a-stalkin' roun' hyar some night, too outdone an' aggervated ter rest in his grave."

But the nights continued spectreless and peaceful on the Great Smoky, and the same serene stars shone above the mountain as over the Cove. Evelina could watch here, as often before, the rising moon ascending through a rugged gap in the range, suffusing the dusky purple slopes and the black crags on either hand with a pensive glamour, and revealing the river below by the amber reflection its light evoked. She often sat on the step of the porch, her elbow on her knees, her chin in her hand, following with her shining eyes the pearly white mists loitering among the ranges. Hear! a dog barks in the Cove, a cock crows, a horn is wound, far, far away; it echoes faintly. And once more only the sounds of the night—that vague stir in the windless woods, as if the forest breathes, the far-away tinkle of water hidden in the darkness—and the moon is among the summits.

The men remained within, for Absalom avoided the chill night air, and crouched over the smouldering fire. Peter's wife sedulously held aloof from the ostracized Quimbey woman. But her mother-in-law had fallen into the habit of sitting upon the porch these moonlit nights. The sparse, newly-leaved hop and gourd vines clambering to its roof were all delicately imaged on the floor, and the old woman's clumsy figure, her grotesque sun-bonnet, her awkward arm-chair, were faithfully reproduced in her shadow on the log wall of the cabin—even to the up-curling smoke from her pipe. Once she suddenly took the stem from her mouth. "Eveliny," she said, "'pears like ter me ye talk mighty little. Thar ain't no use in gittin' tongue-tied up hyar on the mounting."

Evelina started and raised her eyes, dilated with a stare of amazement at this unexpected overture.

"I ain't keerin'," said the old woman, recklessly, to herself, although consciously recreant to the traditions of the family, and sacrificing with a pang her distorted sense of loyalty and duty to her kindlier impulse. "I warn't born a Kittredge nohow."

"Yes, 'm," said Evelina, meekly; "but I don't feel much like talkin' noways; I never talked much, bein' nobody but men-folks ter our house. I'd ruther hear ye talk 'n talk myself."

“Listen at ye now! The headin' young folks o' this kentry 'll never rest till they make thar elders shoulder *all* the burdens. An' what air ye wantin' a pore ole 'oman like me ter talk about?”

Evelina hesitated a moment, then looked up, with a face radiant in the moonbeams. “Tell all 'bout Abs'lom— afore I ever seen him.”

His mother laughed. “Ye air a powerful fool, Eveliny.”

The girl laughed a little, too. “I dunno ez I want ter be no wiser,” she said.

But one was his wife, and the other was his mother, and as they talked of him daily and long, the bond between them was complete.

“I hev got 'em both plumb fooled,” the handsome Absalom boasted at the settlement, when the gossips wondered once more, as they had often done, that there should be such unity of interest between old Joel Quimbey's daughter and old Josiah Kittredge's widow. As time went on many rumors of great peace on the mountain-side came to the father's ears, and he grew more testy daily as he grew visibly older. These rumors multiplied with the discovery that they were as wormwood and gall to him. Not that he wished his daughter to be unhappy, but the joy which was his grief and humiliation was needlessly flaunted into his face; the idlers about the county town had invariably a new budget of details, being supplied, somewhat maliciously, it must be confessed, by the Kittredges themselves. The ceremony of planting one foot on the neck of the vanquished was in their minds one of the essential concomitants of victory. The bold Absalom, not thoroughly known to either of the women who adored him, was ingenious in expedients, and had applied the knowledge gleaned from his wife's reminiscences of her home, her father, and her brothers to more accurately aim his darts. Sometimes old Quimbey would fairly flee the town, and betake himself in a towering rage to his deserted hearth, to brood futilely over the ashes, and devise impotent schemes of vengeance.

He often wondered afterward in dreary retrospection how he had survived that first troublous year after his daughter's elopement, when he was so lonely, so heavy-hearted at home, so harried and angered abroad. His comforts, it is true, were amply insured: a widowed sister had come to preside over his household—a deaf old woman, who had much to be thankful for in her infirmity, for Joel Quimbey in his youth, before he

acquired religion, had been known as a singularly profane man—"a mos' survigrus cusser"—and something of his old proficiency had returned to him. Perhaps public sympathy for his troubles strengthened his hold upon the regard of the community. For it was in the second year of Evelina's marriage, in the splendid midsummer, when all the gifts of nature climax to a gorgeous perfection, and candidates become incumbents, that he unexpectedly attained the great ambition of his life. He was said to have made the race for justice of the peace from sheer force of habit, but by some unexplained freak of popularity the oft-defeated candidate was successful by a large majority at the August election.

"Laws-a-massy, boys," he said, tremulously, to his triumphant sons, when the result was announced, the excited flush on his thin old face suffusing his hollow veinous temples, and rising into his fine white hair, "how glad Eveliny would hev been ef—ef—" He was about to say if she had lived, for he often spoke of her as if she were dead. He turned suddenly back, and began to eagerly absorb the details of the race, as if he had often before been elected, with calm superiority canvassing the relative strength, or rather the relative weakness, of the defeated aspirants.

He could scarcely have measured the joy which the news gave to Evelina. She was eminently susceptible of the elation of pride, the fervid glow of success; but her tender heart melted in sympathetic divination of all that this was to him who had sought it so long, and so unabashed by defeat. She pined to see his triumph in his eyes, to hear it in his voice. She wondered—nay, she knew that he longed to tell it to her. As the year rolled around again to summer, and she heard from time to time of his quarterly visits to the town as a member of the worshipful Quarterly County Court, she began to hope that, softened by his prosperity, lifted so high by his honors above all the cavillings of the Kittredges, he might be more leniently disposed toward her, might pity her, might even go so far as to forgive.

But none of her filial messages reached her father's fiery old heart.

"Ye'll be sure, Abs'lom, ef ye see Joe Boyd in town, ye'll tell him ter gin dad my respec's, an' the word ez how the baby air a-thrivin', an' I wants ter fotch him ter see the fambly at home, ef they'll lemme."

Then she would watch Absalom with all the confidence of happy anticipation, as he rode off down the mountain with his hair flaunting, and his spurs jingling, and his shy young horse curveting.

But no word ever came in response; and sometimes she would take the child in her arms and carry him down a path, worn smooth by her own feet, to a jagged shoulder thrust out by the mountain where all the slopes fell away, and a crag beetled over the depths of the Cove. Thence she could discern certain vague lines marking the enclosure, and a tiny cluster of foliage hardly recognizable as the orchard, in the midst of which the cabin nestled. She could not distinguish them, but she knew that the cows were coming to be milked, lowing and clanking their bells tunefully, fording the river that had the sunset emblazoned upon it, or standing flank deep amidst its ripples; the chickens might be going to roost among the althea bushes; the lazy old dogs were astir on the porch. She could picture her brothers at work about the barn; most often a white-haired man who walked with a stick—alack! she did not fancy how feebly, nor that his white hair had grown long and venerable, and tossed in the breeze. “Ef he would jes lemme kem fur one haff'n hour!” she would cry.

But all her griefs were bewept on the crag, that there might be no tears to distress the tenderhearted Absalom when she should return to the house.

The election of Squire Quimbey was a sad blow to the arrogant spirit of the Kittredges. They had easily accustomed themselves to ascendancy, and they hotly resented the fact that fate had forborne the opportunity to hit Joel Quimbey when he was down. They had used their utmost influence to defeat him in the race, and had openly avowed their desire to see him bite the dust. The inimical feeling between the families culminated one rainy autumnal day in the town where the quarterly county court was in session.

A fire had been kindled in the great rusty stove, and crackled away with grudging merriment inside, imparting no sentiment of cheer to the gaunt bare room, with its dusty window-panes streaked with rain, its shutters drearily flapping in the wind, and the floor bearing the imprint of many boots burdened with the red clay of the region. The sound of slow strolling feet in the brick-paved hall was monotonous and somnolent.

Squire Quimbey sat in his place among the justices. Despite his pride of office, he had not the heart for business that might formerly have been his. More than once his attention wandered. He looked absently out of the nearest window at the neighboring dwelling—a little frame-house with a green yard; a well-sweep was defined against the gray sky, and about the curb a file of geese followed with swaying gait the wise old gander. “What

a hand for fow-*els* Eveliny war!” he muttered to himself; “an’ she hed luck with sech critters.” He used the obituary tense, for Evelina had in some sort passed away.

He rubbed his hand across his corrugated brow, and suddenly he became aware that her husband was in the room, speaking to the chairman of the county court, and claiming a certificate in the sum of two dollars each for the scalps of one wolf, “an’ one painter,” he continued, laying the small furry repulsive objects upon the desk, “an’ one dollar fur the skelp of one wild-cat.” He was ready to take his oath that these animals were killed by him running at large in this county.

He had stooped a little in making the transfer. He came suddenly to his full height, and stood with one hand in his leather belt, the other shouldering his rifle. The old man scanned him curiously. The crude light from the long windows was full upon his tall slim figure; his yellow hair curled down upon the collar of his blue jeans coat; his great miry boots were drawn high over the trousers to the knee; his pensive deer-like eyes brightened with a touch of arrogance and enmity as, turning slowly to see who was present, his glance encountered his father-in-law’s fiery gaze.

“Mr. Cheerman! Mr. Cheerman!” exclaimed the old man, tremulously, “lemme examine that thar wild-cat skelp. Thanky, sir; thanky, sir; I wanter see ef hain’t off’n the head o’ some old tame tomcat. An’ this air a painter’s “—affecting to scan it by the window—“two ears ‘cordin’ to law; yes, sir, two; and this”—his keen old face had all the white light of the sad gray day on its bleaching hair and its many lines, and his eager old hands trembled with the excitement of the significant satire he enacted—“an’ this air a wolf’s, ye say? Yes; it’s a Kittredge’s; same thing, Mr. Cheerman, by a diff’ent name; nuthin’ in the code ‘bout’n a premium fur a Kittredge’s skelp; but same natur’; coward, bully, thief—*thief!*”

The words in the high cracked voice rang from the bare walls and bare floors as he tossed the scalps from him, and sat down, laughing silently in painful, mirthless fashion, his toothless jaw quivering, and his shaking hands groping for the arms of his chair.

“Who says a Kittredge air a thief says a lie!” cried out the young man, recovering from his tense surprise. “I don’t keer how old he be,” he stipulated—for he had not thought to see her father so aged—“he lies.”

The old man fixed him with a steady gaze and a sudden alternation of calmness. "Ye air a Kittredge; ye stole my daughter from me."

"I never. She kem of her own accord."

"Damn ye!" the old man retorted to the unwelcome truth. There was nothing else for him to say. "Damn the whole tribe of ye; everything that goes by the accursed name of Kittredge, that's got a drop o' yer blood, or a bone o' yer bones, or a puif o' yer breath—"

"Squair! squair!" interposed an officious old colleague, taking him by the elbow, "jes' quiet down now; ye air a-cussin' yer own gran'son."

"So be! so be!" cried the old man, in a frenzy of rage. "Damn 'em all—all the Kittredge tribe!" He gasped for breath; his lips still moved speechlessly as he fell back in his chair.

Kittredge let his gun slip from his shoulder, the butt ringing heavily as it struck upon the floor. "I ain't a-goin' ter take sech ez that off'n ye, old man," he cried, pallid with fury, for be it remembered this grandson was that august institution, a first baby. "He sha'n't sit up thar an' cuss the baby, Mr. Cheerman." He appealed to the presiding justice, holding up his right arm as tremulous as old Quimbey's own. "I want the law! I ain't a-goin' ter tech a old man like him, an' my wife's father, so I ax in the name o' peace fur the law. Don't deny it"—with a warning glance—"kase I ain't school-larned, an' dunno how ter get it. Don't ye deny me the law! I *know* the law don't 'low a magistrate an' a jestic ter cuss in his high office, in the presence of the county court. I want the law! I want the law!"

The chairman of the court, who had risen in his excitement, turning eagerly first to one and then to the other of the speakers, striving to silence the colloquy, and in the sudden surprise of it at a momentary loss how to take action, sat down abruptly, and with a face of consternation. Profanity seemed to him so usual and necessary an incident of conversation that it had never occurred to him until this moment that by some strange aberration from the rational estimate of essentials it was entered in the code as a violation of law. He would fain have overlooked it, but the room was crowded with spectators. The chairman would be a candidate for re-election as justice of the peace at the expiration of his term. And after all what was old Quimbey to him, or he to old Quimbey, that, with practically the whole town looking on, he should destroy his political prospects and disregard the dignity of his office. He had a certain twinge of conscience, and a

recollection of the choice and fluent oaths of his own repertory, but as he turned over the pages of the code in search of the section he deftly argued that they were uttered in his own presence as a person, not as a justice.

And so for the first time old Joel Quimbey appeared as a law-breaker, and was duly fined by the worshipful county court fifty cents for each oath, that being the price at which the State rates the expensive and impious luxury of swearing in the hearing of a justice of the peace, and which in its discretion the court saw fit to adopt in this instance.

The old man offered no remonstrance; he said not a word in his own defence. He silently drew out his worn wallet, with much contortion of his thin old anatomy in getting to his pocket, and paid his fines on the spot. Absalom had already left the room, the clerk having made out the certificates, the chairman of the court casting the scalps into the open door of the stove, that they might be consumed by fire according to law.

The young mountaineer wore a heavy frown, and his heart was ill at ease. He sought some satisfaction in the evident opinion of the crowd which now streamed out, for the excitements within were over, that he had done a fine thing; a very clever thought, they considered it, to demand the law of Mr. Chairman, that one of their worships should be dragged from the bench and arraigned before the quarterly county court of which he was a member. The result gave general satisfaction, although there were those who found fault with the court's moderation, and complained that the least possible cognizance had been taken of the offence.

“Ho! ho! ho!” laughed an old codger in the street. “I jes knowed that hurt old Joel Quimbey wuss 'n ef a body hed druv a knife through him; he's been so proud o' bein' jestic 'mongst his betters, an' bein' 'lected at las', many times ez he hev run. Waal, Abs'lom, ye hev proved thar's law fur jestic too. I tell ye ye hev got sense in yer skull-i-bone.”

But Absalom hung his head before these congratulations; he found no relish in the old man's humbled pride. Yet had he not cursed the baby, lumping him among the Kittredges? Absalom went about for a time, with a hopeful anxiety in his eyes, searching for one of the younger Quim-beys, in order to involve him in a fight that might have a provocation and a result more to his mind. Somehow the recollection of the quivering and aged figure of his wife's father, of the smitten look on his old face, of his abashed and humbled demeanor before the court, was a reproach to him, vivid and

continuously present with his repetitious thoughts forever re-enacting the scene. His hands trembled; he wanted to lay hold on a younger man, to replace this aesthetic revenge with a quarrel more wholesome in the estimation of his own conscience. But the Quimbey sons were not in town to-day. He could only stroll about and hear himself praised for this thing that he had done, and wonder how he should meet Evelina with his conscience thus arrayed against himself for her father's sake. "Plumb turned Quimbey, I swear," he said, in helpless reproach to this independent and coercive moral force within. His dejection, he supposed, had reached its lowest limits, when a rumor pervaded the town, so wild that he thought it could be only fantasy.

It proved to be fact. Joel Quimbey, aggrieved, humbled, and indignant, had resigned his office, and as Absalom rode out of town toward the mountains, he saw the old man in his crumpled brown jeans suit, mounted on his white mare, jogging down the red clay road, his head bowed before the slanting lines of rain, on his way to his cheerless fireside. He turned off presently, for the road to the levels of the Cove was not the shorter cut that Absalom travelled to the mountains. But all the way the young man fancied that he saw from time to time, as the bridle-path curved in the intricacies of the laurel, the bowed old figure among the mists, jogging along, his proud head and his stiff neck bent to the slanting rain and the buffets of his unkind fate. And yet, pressing the young horse to overtake him, Absalom could find naught but the fleecy mists drifting down the bridle-path as the wind might will, or lurking in the darkling nooks of the laurel when the wind would.

The sun was shining on the mountains, and Absalom went up from the sad gray rain and through the gloomy clouds of autumn hanging over the Cove into a soft brilliant upper atmosphere—a generous after-thought of summer—and the warm brightness of Evelina's smile. She stood in the doorway as she saw him dismounting, with her finger on her lips, for the baby was sleeping: he put much of his time into that occupation. The tiny gourds hung yellow among the vines that clambered over the roof of the porch, and a brave jack-bean—a friend of the sheltering eaves—made shift to bloom purple and white, though others of the kind hung, crisp and sere, and rattled their dry bones in every gust. The "gyarden spot" at the side of the house was full of brown and withered skeletons of the summer growths; among the crisp blades of the Indian-corn a sibilant voice was forever

whispering; down the tawny-colored vistas the pumpkins glowed. The sky was blue; the yellow hickory flaming against it and hanging over the roof of the cabin was a fine color to see. The red sour-wood tree in the fence corner shook out a myriad of white tassels; the rolling tumult of the gray clouds below thickened, and he could hear the rain a-falling—falling into the dreary depths of the Cove.

All this for him: why should he disquiet himself for the storm that burst upon others?

Evelina seemed a part of the brightness; her dark eyes so softly alight, her curving red lips, the faint flush in her cheeks, her rich brown hair, and the purplish kerchief about the neck of her yellow dress. Once more she looked smilingly at him, and shook her head and laid her finger on her lip.

“I oughter been sati'fied with all I got, stiddier hectorin' other folks till they 'ain't got no heart ter hold on ter what they been at sech trouble ter git,” he said, as he turned out the horse and strode gloomily toward the house with the saddle over his arm.

“Hev ennybody been spiteful ter you-uns ter-day?” she asked, in an almost maternal solicitude, and with a flash of partisan anger in her eyes.

“Git out'n my road, Eveliny,” he said, fretfully, pushing by, and throwing the saddle on the floor. There was no one in the room but the occupant of the rude box on rockers which served as cradle.

Absalom had a swift, prescient fear. “She'll git it all out'n me ef I don't look sharp,” he said to himself. Then aloud, “Whar's mam?” he demanded, flinging himself into a chair and looking loweringly about.

“Topknot hev jes kem off'n her nest with fourteen deedies, an' she an' 'Melia hev gone ter the barn ter see 'bout'n 'em.”

“Whar's Pete?”

“A-huntin'.”

A pause. The fire smouldered audibly; a hickory-nut fell with a sharp thwack on the clapboards of the roof, and rolled down and bounded to the ground.

Suddenly: “I seen yer dad ter-day,” he began, without coercion. “He gin me a cussin', in the courtroom, 'fore all the folks. He cussed all the Kit-tredges, *all* o' 'em; him too”—he glanced in the direction of the cradle

—“cussed 'em black an' blue, an' called me a *thief* fur marryin' ye an kerry-in' ye off.”

Her face turned scarlet, then pale. She sat down, her trembling hands reaching out to rock the cradle, as if the youthful Kittredge might be disturbed by the malediction hurled upon his tribe. But he slept sturdily on.

“Waal, now,” she said, making a great effort at self-control, “ye oughtn't ter mind it. Ye know he war powerful tried. I never purtended ter be ez sweet an' pritty ez the baby air, but how would you-uns feel ef somebody ye despised war ter kem hyar an' tote him off from we-uns forever?”

“I'd cut thar hearts out,” he said, with prompt barbarity.

“Thar, now!” exclaimed his wife, in triumphant logic.

He gloomily eyed the smouldering coals. He was beginning to understand the paternal sentiment. By his own heart he was learning the heart of his wife's father.

“I'd chop 'em inter minch-meat,” he continued, carrying his just reprisals a step further.

“Waal, don't do it right now,” said his wife, trying to laugh, yet vaguely frightened by his vehemence.

“Eveliny,” he cried, springing to his feet, “I be a-goin' ter tell ye all 'bout'n it. I jes called on the cheerman fur the law agin him.”

“Agin *dad!*—the law!” Her voice dropped as she contemplated aghast this terrible unapprehended force brought to oppress old Joel Quim-bey; she felt a sudden poignant pang for his forlorn and lonely estate.

“Never mind, never mind, Eveliny,” Absalom said, hastily, repenting of his frantic candor and seeking to soothe her.

“I *will* mind,” she said, sternly. “What hev ye done ter dad?”

“Nuthin',” he replied, sulkily—“nuthin'.”

“Ye needn't try ter fool me, Abs'lom Kittredge. Ef ye ain't minded ter tell me, I'll foot it down ter town an' find out. What did the law do ter him?”

“Jes fined him,” he said, striving to make light of it.

“An' ye done that fur—*spite!*” she cried. “A-set-tin' the law ter chouse a old man out'n money, fur gittin' mad an' sayin' ye stole his only darter. Oh, I'll answer fur him”—she too had risen; her hand trembled on the back of the chair, but her face was scornfully smiling—“he don't mind the *money*;

he'll never git you-uns *fined* ter pay back the gredge. He don't take his wrath out on folkses' *wallets*; he grips thar throats, or teches the trigger o' his rifle. Laws-a-massy! takin' out yer gredge that-a-way! It's ye poorer fur them dollars, Abs'lom—'tain't him." She laughed satirically, and turned to rock the cradle.

"What d'ye want me ter do? Fight a old man?" he exclaimed, angrily.

She kept silence, only looking at him with a flushed cheek and a scornful laughing eye.

He went on, resentfully: "I ain't 'shamed," he stoutly asserted. "Nobody 'lowed I oughter be, It's him, plumb bowed down with shame."

"The shoe's on the t'other foot," she cried. "It's ye that oughter be 'shamed, an' ef ye ain't, it's more shame ter ye. What hev he got ter be 'shamed of?"

"Kase," he retorted, "he war fetched up afore a court on a crim'nal offence—a-cussin' afore the court! Ye may think it's no shame, but he do; he war so 'shamed he gin up his office ez jestic o' the peace, what he hev run fur four or five times, an' always got beat 'ceptin' wunst."

"Dad!" but for the whisper she seemed turning to stone; her dilated eyes were fixed as she stared into his face.

"An' I seen him a-ridin' off from town in the rain arterward, his head hangin' plumb down ter the saddle-bow."

Her amazed eyes were still fastened upon his face, but her hand no longer trembled on the back of the chair.

He suddenly held out his own hand to her, his sympathy and regret returning as he recalled the picture of the lonely wayfarer in the rain that had touched him so. "Oh, Eveliny!" he cried, "I never war so beset an' sorry an'—"

She struck his hand down; her eyes blazed. Her aspect was all instinct with anger.

"I do declar' I'll never furgive ye—ter spite him so—an' kem an' tell *me!* An' shame him so ez he can't hold his place—an' kem an' tell *me!* An' bow him down so ez he can't show his face whar he hev been so respected by all—an' kem an' tell *me!* An' all fur spite, fur he hev got nuthin' ye want now. An' I gin him up an' lef him lonely, an' all fur you-uns. Ye air mean,

Abs'lom Kit-tredge, an' I'm the mos' fursaken fool on the face o' the yearth!"

He tried to speak, but she held up her hand in expostulation.

"Nare word—fur I won't answer. I do declar' I'll never speak ter ye agin ez long ez I live."

He flung away with a laugh and a jeer. "That's right," he said, encouragingly; "plenty o' men would be powerful glad ef thar wives would take pattern by that."

He caught up his hat and strode out of the room. He busied himself in stabling his horse, and in looking after the stock. He could hear the women's voices from the loft of the barn as they disputed about the best methods of tending the newly hatched chickens, that had chipped the shell so late in the fall as to be embarrassed by the frosts and the coming cold weather. The last bee had ceased to drone about the great crimson prince's-feather by the door-step, worn purplish through long flaunting, and gone to seed. The clouds were creeping up and up the slope, and others were journeying hither from over the mountains. A sense of moisture was in the air, although a great column of dust sprang up from the dry corn-field, with panic-stricken suggestions, and went whirling away, carrying off withered blades in the rush. The first drops of rain were pattering, with a resonant timbre in the midst, when Pete came home with a newly killed deer on his horse, and the women, with fluttering skirts and sun-bonnets, ran swiftly across from the barn to the back door of the shed-room. Then the heavy downpour made the cabin rock.

"Why, Eveliny an' the baby oughtn't ter be out in this hyar rain—they'll be drenched," said the old woman, when they were all safely housed except the two. "Whar be she?"

"A-foolin' in the gyarden spot a-getherin' seed an' sech, like she always be," said the sister-in-law, tartly.

Absalom ran out into the rain without his hat, his heart in the clutch of a prescient terror. No; the summer was over for the garden as well as for him; all forlorn and rifled, its few swaying shrubs tossed wildly about, a mockery of the grace and bloom that had once embellished it. His wet hair Streaming backward in the wind caught on the laurel boughs as he went down and down the tangled path that her homesick feet had worn to the crag which overlooked the Cove. Not there! He stood, himself enveloped in the mist,

and gazed blankly into the folds of the dun-colored clouds that with tumultuous involutions surged above the valley and baffled his vision. He realized it with a sinking heart. She was gone.

That afternoon—it was close upon nightfall—Stephen Quimbey, letting down the bars for the cows, noticed through the slanting lines of rain, serried against the masses of sober-hued vapors which hid the great mountain towering above the Cove, a woman crossing the foot-bridge. He turned and lifted down another bar, and then looked again. Something was familiar in her aspect, certainly. He stood gravely staring. Her sun-bonnet had fallen back upon her shoulders, and was hanging loosely there by the strings tied beneath her chin; her brown hair, dishevelled by the storm, tossed back and forth in heavy wave-less locks, wet through and through. When the wind freshened they lashed, thong-like, her pallid oval face; more than once she put up her hand and tried to gather them together, or to press them back—only one hand, for she clasped a heavy bundle in her arms, and as she toiled along slowly up the rocky slope, Stephen suddenly held his palm above his eyes. The recognition was becoming definite, and yet he could scarcely believe his senses: was it indeed Evelina, wind-tossed, tempest-beaten, and with as many tears as rain-drops on her pale cheek? Evelina, forlorn and sorry, and with swollen sad dark eyes, and listless exhausted step—here again at the bars, where she had not stood since she dragged her wounded lover thence on that eventful night two years and more ago.

Resentment for the domestic treachery was uppermost in his mind, and he demanded surlily, when she had advanced within the sound of his words, “What hev ye kem hyar fur?”

“Ter stay,” she responded, briefly.

His hand in an uncertain gesture laid hold upon his tuft of beard.

“Fur good?” he faltered, amazed.

She nodded silently.

He stooped to lift down the lowest bar that she might pass. Suddenly the bundle she clasped gave a dexterous twist; a small head, with yellow downy hair, was thrust forth; a pair of fawn-like eyes fixed an inquiring stare upon him; the pink face distended with a grin, to which the two small teeth in the red mouth, otherwise empty, lent a singularly merry expression; and with a

manner that was a challenge to pursuit, the head disappeared as suddenly as it had appeared, tucked with affected shyness under Evelina's arm.

She left Stephen standing with the bar in his hand, staring blankly after her, and ran into the cabin.

Her father had no questions to ask—nor she.

As he caught her in his arms he gave a great cry of joy that rang through the house, and brought Timothy from the barn, in astonishment, to the scene.

“Eveliny's *home!*” he cried out to Tim, who, with the ox-yoke in his hand, paused in the doorway. “Kem ter stay! Eveliny's *home!* I knowed she'd kem back to her old daddy. Eveliny's kem ter stay fur good.”

“They tole me they'd hectored ye plumb out'n the town an' out'n yer office. They hed the insurance ter tell *me* that word!” she cried, sobbing on his breast.

“What d'ye reckon I keer fur enny jestice's cheer when I hev got ye agin ter set alongside o' me by the fire?” he exclaimed, his cracked old voice shrill with triumphant gladness.

He pushed her into her rocking-chair in the chimney-corner, and laughed again with the supreme pleasure of the moment, although she had leaned her head against the logs of the wall, and was sobbing aloud with the contending emotions that tore her heart.

“Didn't ye ever want ter kem afore, Eveliny?” he demanded. “I hev been a-pinin' fur a glimge o' ye.” He was in his own place now, his hands trembling as they lay on the arms of his chair; a pathetic reproach was in his voice. “Though old folks oughtn't ter expec' too much o' young ones, ez be all tuk up naterally with tharse'fs,” he added, bravely. He would not let his past lonely griefs mar the bright present. “Old folks air mos'ly cumber-ers—mos'ly cumberers o' the yearth, ennyhow.”

Her weeping had ceased; she was looking at him with dismayed surprise in her eyes, still lustrous with unshed tears. “Why, dad I sent ye a hundred messages ef I mought kem. I tole Abs'lom ter tell Joe Boyd—bein' as ye liked Joe—I wanted ter see ye.” She leaned forward and looked up at him with frowning intensity. “They never gin ye that word?”

He laughed aloud in sorry scorn. “We can't teach our chil'n nuthin',” he philosophized. “They hev got ter hurt tharse'fs with all the thorns an' the

stings o' the yearth. Our sperience with the sharp things an' bitter ones don't do them no sarvice. Naw, leetle darter—naw! Ye mought ez well gin a message o' kindness ter a wolf, an' expec' him ter kerry it ter some lonesome, helpless thing a-wounded by the way-side, ez gin it ter a Kittredge.”

“I never will speak ter one o' 'em agin ez long ez I live,” she cried, with a fresh gust of tears.

“Waal,” exclaimed the old man, reassuringly, and chirping high, “hyar we all be agin, jes' the same ez we war afore. Don't cry, Eveliny; it's jes' the same.”

A sudden babbling intruded upon the conversation. The youthful Kittredge, as he sat upon the wide flat stones of the hearth, was as unwelcome here in the Cove as a Quimbey had been in the cabin on the mountain. The great hickory fire called for his unmixed approval, coming in, as he had done, from the gray wet day. He shuffled his bare pink feet—exceedingly elastic and agile members they seemed to be, and he had a remarkable “purchase” upon their use—and brought them smartly down upon their heels as if this were one of the accepted gestures of applause. Then he looked up at the dark frowning faces of his mother's brothers, and gurgled with laughter, showing the fascinating spectacle of his two front teeth. Perhaps it was the only Kittredge eye that they were not willing to meet. They solemnly gazed beyond him and into the fire, ignoring his very existence. He sustained the slight with an admirable cheerfulness, and babbled and sputtered and flounced about with his hands. He grew pinker in the generous firelight, and he looked very fat as he sat in a heap on the floor. He seemed to have threads tightly tied about his bolster-shaped limbs in places where elder people prefer joints—in his ankles and wrists and elbows—for his arms were bare, and although his frock of pink calico hung decorously high on one shoulder, it drooped quite off from the other, showing a sturdy chest.

His mother took slight notice of him; she was beginning to look about the room with a certain critical disfavor at the different arrangement of the household furniture adopted by her father's deaf and widowed old sister who presided here now, and who, it chanced, had been called away by the illness of a relative. Evelina got up presently, and shifted the position of the spinning-wheels, placing the flax-wheel where the large wheel had been.

She then pushed out the table from the corner. "What ailed her ter sot it hyar?" she grumbled, in a disaffected undertone, and shoved it to the centre of the floor, where it had always stood during her own sway. She cast a discerning glance up among the strings of herbs and peppers hanging from above, and examined the shelves where the simple stores for table use were arranged in earthen-ware bowls or gourds—all with an air of vague dissatisfaction. She presently stepped into the shed-room, and there looked over the piles of quilts. They were in order, certainly, but placed in a different method from her own; another woman's hand had been at work, and she was jealous of its very touch among these familiar old things to which she seemed positively akin. "I wonder how I made out ter bide so long on the mounting," she said; and with the recollection of the long-haired Absalom there was another gush of tears and sobs, which she stifled as she could in one of the old quilts that held many of her own stitches and was soothing to touch.

The infantile Kittredge, who was evidently not born to blush unseen, seemed to realize that he had failed to attract the attention of the three absorbed Quimbeys who sat about the fire. He blithely addressed himself to another effort. He suddenly whisked himself over on all-fours, and with a certain ursine aspect went nimbly across the hearth, still holding up his downy yellow head, his pink face agrin, and alluringly displaying his two facetious teeth. He caught the rung of Tim's chair, and lifted himself tremulously to an upright posture. And then it became evident that he was about to give an exhibition of the thrilling feat of walking around a chair. With a truly Kittredge perversity he had selected the one that had the savage Timothy seated in it. For an instant the dark-browed face scowled down into his unaffrighted eyes: it seemed as if Tim might kick him into the fire. The next moment he had set out to circumnavigate, as it were. What a prodigious force he expended upon it! How he gurgled and grinned and twisted his head to observe the effect upon the men, all sedulously gazing into the fire! how he bounced, and anon how he sank with sudden genuflections! how limber his feet seemed, and what free agents! Surely he never intended to put them down at that extravagant angle. More than once one foot was placed on top of the other—an attitude that impeded locomotion and resulted in his sitting down in an involuntary manner and with some emphasis. With an appalling temerity he clutched Tim's great miry boots to help him up and on his way round. Occasionally he swayed to

and fro, with his teeth on exhibition, laughing and babbling and shrilly exclaiming, inarticulately bragging of his agile prowess, as if he were able to defy all the Quimbeys, who would not notice him. And when it was all over he went in his wriggling ursine gait back to the hearth-stone, and there he was sitting, demurely enough, and as if he had never moved, when his mother returned and found him.

There was no indication that he had attracted a moment's attention. She looked gravely down at him; then took her chair. A pair of blue yarn socks was in her hand. "I never see sech darnin' ez Aunt Sairy Ann do fur ye, dad; I hev jes tuk my shears an' cut this heel smang out, an' I be goin' ter do it over."

She slipped a tiny gourd into the heel, and began to draw the slow threads to and fro across it.

The blaze, red and yellow, and with elusive purple gleams, leaped up the chimney. The sap was still in the wood; it sang a summer-tide song. But an autumn wind was blowing shrilly down the chimney; one could hear the sibilant rush of the dead leaves on the blast. The window and the door shook, and were still, and once more rattled as if a hand were on the latch.

Suddenly—"Ever weigh him?" her father asked.

She sat upright with a nervous start. It was a moment before she understood that it was of the Kittredge scion he spoke.

With his high cracked laugh the old man leaned over, his outspread hand hovering about the plump baby, uncertain where, in so much soft fatness, it might be practicable to clutch him. There were some large horn buttons on the back of his frock, a half-dozen of which, gathered together, afforded a grasp. He lifted the child by them, laughing in undisguised pleasure to feel the substantial strain upon the garment.

"Toler'ble survigrus," he declared, with his high chirp.

His daughter suddenly sprang up with a pallid face and a pointing hand.

"The winder!" she huskily cried—"suthin's at the winder!"

But when they looked they saw only the dark square of tiny panes, with the fireside scene genially reflected on it. And then she fell to declaring that she had been dreaming, and besought them not to take down their guns nor to search, and would not be still until they had all seemed to concede the point; it was she who fastened the doors and shutters, and she did not lie

down to rest till they were all asleep and hours had passed. None of them doubted that it was Absalom's face that she had seen at the window, where the light had once lured him before, and she knew that she had dreamed no dream like this.

It soon became evident that whenever Joe Boyd was intrusted with a message he would find means to deliver it. For upon him presently devolved the difficult duties of ambassador. The first time that his honest square face appeared at the rail fence, and the sound of his voice roused Evelina as she stood feeding the poultry close by, she returned his question with a counter-question hard to answer.

“I hev been up the mounting,” he said, smiling, as he hooked his arms over the rail fence. “Abs'-lom he say he wanter know when ye'll git yer visit out an' kem home.”

She leaned her elbow against the ash-hopper, balancing the wooden bowl of corn-meal batter on its edge and trembling a little; the geese and chickens and turkeys crowded, a noisy rout, about her feet.

“Joe,” she said, irrelevantly, “ye air one o' the few men on this yearth ez ain't a liar.”

He stared at her gravely for a moment, then burst into a forced laugh. “Ho! ho! I tell a bushel o' 'em a day, Eveliny!” He wagged his head in an anxious affectation of mirth.



“ ‘WHY’N’T YE GIN DAD THEM MESSAGES?’ ”

“Why’n’t ye gin dad them messages ez Abs’lom gin ye from me?”

Joe received this in blank amaze; then, with sudden comprehension, his lower jaw dropped. He looked at her with a plea for pity in his eyes. And yet his ready tact strove to reassert itself.

“I mus’ hev furgot ‘em,” he faltered.

“Did Abs’lom ever gin ‘em ter ye?” she persisted.

“*Ef he did*, I mus’ hev furgot ‘em,” he repeated, crestfallen and hopeless.

She laughed and turned jauntily away, once more throwing the corn-meal batter to the greedily jostling poultry. “Tell Abs’lom I hev fund him out,” she said. “He can’t sot me agin dad no sech way. This be my home, an’ hyar I be goin’ ter ‘bide.”

And so she left the good Joe Boyd hooked on by the elbows to the fence.

The Quimbeys, who had heard this conversation from within, derived from it no small elation. “She hev gin ‘em the go-by fur good,” Timothy said, confidently, to his father, who laughed in triumph, and pulled calmly at his pipe, and looked ten years younger.

But Steve was surlily anxious. “I’d place heap mo’ dependence in Eveliny ef she didn’t hev this hyar way o’ cryin’ all the time. She ‘lows she’s glad she

kem—so *glad* she hev lef Abs'lom fur good an' all—an' then she busts out a-cryin' agin. I ain't able ter argufy on sech."

"Shucks! wimmen air always a-cryin', an' they don't mean *nuthin'*" by it," exclaimed the old man, in the plenitude of his wisdom. "It air jes' one o' thar most contrarious ways. I hev seen 'em set down an' cry fur joy an' pleasure."

But Steve was doubtful. "It be a powerful low-sperited gift fur them ez hev ter 'bide along of 'em. Eveliny never useter be tearful in nowise. Now she cries a heap mo' 'n that thar shoat"—his lips curled in contempt as he glanced toward the door, through which was visible a small rotund figure in pink calico, seated upon the lowest log of the wood-pile—"ez she fotched down hyar with her. *He* never hev hed a reg'lar blate but two or three times sence he hev been hyar, an' them war when that thar old tur-rkey gobbler teetered up ter him an' tuk his corn-dodger that he war a-eatin' on plumb out'n his hand. *He* hed suthin' to holler fur—hed los' his breakfus."

"Don't he 'pear ter you-uns to be powerful peeg-eon-toed?" asked Tim, anxiously, turning to his father.

"The gawbbler?" faltered the amazed old man.

"Naw; him, *him*—*Kittredge*," said Tim, jerking his big thumb in the direction of the small boy.

"Law-dy Gawd A'mighty! *naw! naw!*" The grandfather indignantly repudiated the imputation of the infirmity. One would have imagined that he would deem it meet that a Kittredge should be pigeon-toed. "It's jes the way *all* babies hev got a-walkin'; he ain't right handy yit with his feet—jes a-beginnin' ter walk, an' sech. Peegeon-toed! I say it, ye fool!" He cast a glance of contempt on his eldest-born, and arrogantly puffed his pipe.

Again Joe Boyd came, and yet again. He brought messages contrite and promissory from Absalom; he brought commands stern and insistent. He came into the house at last, and sat and talked at the fireside in the presence of the men of the family, who bore themselves in a manner calculated to impress the Kittredge emissary with their triumph and contempt for his mission, although they studiously kept silence, leaving it to Evelina to answer.

At last the old man, leaning forward, tapped Joe on the knee. "See hyar, Joe. Ye hev always been a good frien' o' mine. This hyar man he stole my

darter from me, an' whenst she wanted ter be frien's, an' not let her old dad die unforgiving he wouldn't let her send the word ter me. An' then he sot himself ter spite an' hector me, an' fairly run me out'n the town, an' harried me out'n my office; an' when she fund out—she wouldn't take my word fur it—the deceivin' natur' o' the Kittredge tribe, she hed hed enough o' 'em. I hev let ye argufy 'bout'n it; ye hev hed yer fill of words. An' now I be tired out. Ye ain't 'lowin' she'll ever go back ter her husband, air ye?”

Joe dolorously shook his head.

“Waal, ef ever ye kem hyar talkin' 'bout'n it agin, I'll be 'bleeged ter take down my rifle ter ye.”

Joe gazed, unmoved, into the fire.

“An' that would be mighty hard on me, Joe, 'kase ye be so pop'lar 'mongst all, I dunno *what* the kentry-side would do ter me ef I war ter put a bullet inter ye. Ye air a young man, Joe. Ye oughter spare a old man sech a danger ez that.”

And so it happened that Joe Boyd's offices as mediator ceased.

A week went by in silence and without result.

Evelina's tears seemed to keep count of the minutes. The brothers indignantly noted it, and even the old man was roused from the placid securities of his theories concerning lachrymose womankind, and remonstrated sometimes, and sometimes grew angry and exhorted her to go back. What did it matter to her how her father was treated? He was a cumberer of the ground, and many people besides her husband had thought he had no right to sit in a justice's chair. And then she would burst into tears once more, and declare again that she would never go back.

The only thoroughly cheerful soul about the place was the intruding Kittredge. He sat continuously—for the weather was fine—on the lowest log of the wood-pile, and swung his bare pink feet among the chips and bark, and seemed to have given up all ambition to walk. Occasionally red and yellow leaves whisked past his astonished eyes, although these were few now, for November was on the wane. He babbled to the chickens, who pecked about him with as much indifference as if he were made of wood. His two teeth came glittering out whenever the rooster crowed, and his gleeful laugh—he rejoiced so in this handsomely endowed bird—could be heard to the barn. The dogs seemed never to have known that he was a

Kittredge, and wagged their tails at the very sound of his voice, and seized surreptitious opportunities to lick his face. Of all his underfoot world only the gobbler awed him into gravity and silence; he would gaze in dismay as the marauding fowl irresolutely approached from around the wood pile, with long neck out-stretched and undulating gait, applying first one eye and then the other to the pink hands, for the gobbler seemed to consider them a perpetual repository of corn-dodgers, which indeed they were. Then the head and the wabbling red wattles would dart forth with a sudden peck, and the shriek that ensued proved that nothing could be much amiss with the Kittredge lungs.

One fine day he sat thus in the red November sunset. The sky, seen through the interlacing black boughs above his head, was all amber and crimson, save for a wide space of pure and pallid green, against which the purplish-garnet wintry mountains darkly gloomed. Beyond the rail fence the avenues of the bare woods were carpeted with the sere yellowish leaves that gave back the sunlight with a responsive illuminating effect, and thus the sylvan visitas glowed. The long slanting beams elongated his squatty little shadow till it was hardly a caricature. He heard the cow lowing as she came to be milked, fording the river where the clouds were so splendidly reflected. The chickens were going to roost. The odor of the wood, the newly-hewn chips, imparted a fresh and fragrant aroma to the air. He had found among them a sweet-gum ball and a pine cone, and was applying them to the invariable test of taste. Suddenly he dropped them with a nervous start, his lips trembled, his lower jaw fell, he was aware of a stealthy approach. Something was creeping behind the wood-pile. He hardly had time to bethink himself of his enemy the gobbler when he was clutched under the arm, swung through the air with a swiftness that caused the scream to evaporate in his throat, and the next moment he looked quakingly up into his father's face with unrecognizing eyes; for he had forgotten Absalom in these few weeks. He squirmed and wriggled as he was held on the pommel of the saddle, winking and catching his breath and spluttering, as preliminary proceedings to an outcry. There was a sudden sound of heavily shod feet running across the puncheon floor within, a wild, incoherent exclamation smote the air, an interval of significant silence ensued.

“Get up!” cried Absalom, not waiting for Tim's rifle, but spurring the young horse, and putting him at the fence. The animal rose with the

elasticity and lightness of an uprearing ocean wave. The baby once more twisted his soft neck, and looked anxiously into the rider's face. This was not the gobbler. The gobbler did not ride horseback. Then the affinity of the male infant for the noble equine animal suddenly overbore all else. In elation he smote with his soft pink hand the glossy arched neck before him. "Dul-lup!" he arrogantly echoed Absalom's words. And thus father and son at a single bound disappeared into woods, and so out of sight.

The savage Tim was leaning upon his rifle in the doorway, his eyes dilated, his breath short, his whole frame trembling with excitement, as the other men, alarmed by Evelina's screams, rushed down from the barn.

"What ails ye, Tim? Why'n't ye fire?" demanded his father.

Tim turned an agitated, baffled look upon him. "I—I mought hev hit the baby," he faltered.

"Hain't ye got no aim, ye durned sinner?" asked Stephen, furiously.

"Bullet mought hev gone through him and struck inter the baby," expostulated Tim.

"An' then agin it moughtn't!" cried Stephen. "Lawd, ef *I* hed hed the chance!"

"Ye wouldn't hev done no differ," declared Tim.

"Hyar!" Steve caught his brother's gun and presented it to Tim's lips. "Suck the bar'l. It's 'bout all ye air good fur."

The horses had been turned out. By the time they were caught and saddled pursuit was evidently hopeless. The men strode in one by one, dashing the saddles and bridles on the floor, and finding in angry expletives a vent for their grief. And indeed it might have seemed that the Quimbey's must have long sought a choice Kittredge infant for adoption, so far did their bewailings discount Rachel's mourning.

"Don't cry, Eveliny," they said, ever and anon. "We-uns 'll git him back fur ye."

But she had not shed a tear. She sat speechless, motionless, as if turned to stone.

"Laws-a-massy, child, ef ye would jes hev b'lieved *me* 'bout'n them Kittredges—Abs'lom in partic'lar—ye'd be happy an' free now," said the old

man, his imagination somewhat extending his experience, for he had had no knowledge of his son-in-law until their relationship began.

The evening wore drearily on. Now and then the men roused themselves, and with lowering faces discussed the opportunities of reprisal, and the best means of rescuing the child. And whether they schemed to burn the Kittredge cabin, or to arm themselves, burst in upon their enemies, shooting and killing all who resisted, Evelina said nothing, but stared into the fire with unnaturally dilated eyes, her white lined face all drawn and somehow unrecognizable.

“Never mind,” her father said at intervals, taking her cold hand, “we-uns 'll git him back, Eveliny. The Lord hed a mother wunst, an' I'll be bound He keeps a special pity for a woman an' her child.”

“Oh, great gosh! who'd hev dreamt we'd hev missed him so!” cried Tim, shifting his position, and slipping his left arm over the back of his chair. “Jes ter think o' the leetle size o' him, an' the great big gap he hev lef roun' this hyar ha'th-stone!”

“An' yit he jes sot underfoot, 'mongst the cat an' the dogs, jes ez humble!” said Stephen.

“I'd git him back even ef he warn't no kin ter me, Eveliny,” declared Tim, and he spoke advisedly, remembering that the youth was a Kittredge.

Still Evelina said not a word. All that night she silently walked the puncheon floor, while the rest of the household slept. The dogs, in vague disturbance, because of the unprecedented vigil and stir in the midnight, wheezed uneasily from time to time, and crept restlessly about under the cabin, now and again thumping their backs or heads against the floor; but at last they betook themselves to slumber. The hickory logs broke in twain as they burned, and fell on either side, and presently there was only the dull red glow of the embers on her pale face, and the room was full of brown shadows, motionless, now that the flames flared no more. Once when the red glow, growing ever dimmer, seemed almost submerged beneath the gray ashes, she paused and stirred the coals. The renewed glimmer showed a fixed expression in her eyes, becoming momentarily more resolute. At intervals she knelt at the window and placed her hands about her face to shut out the light from the hearth, and looked out upon the night. How the chill stars loitered! How the dawn delayed! The great mountain gloomed darkling above the Cove. The waning moon, all melancholy and mystic,

swung in the purple sky. The bare, stark boughs of the trees gave out here and there a glimmer of hoar-frost. There was no wind; when she heard the dry leaves whisk she caught a sudden glimpse of a fox that, with his crafty shadow pursuing him, leaped upon the wood-pile, nimbly ran along its length, and so, noiselessly, away—while the dogs snored beneath the house. A cock crew from the chicken-roost; the mountain echoed the resonant strain. She saw a mist come stealing softly along a precipitous gorge; the gauzy web hung shimmering in the moon; presently the trees were invisible; anon they showed rigid among the soft enmeshment of the vapor, and again were lost to view..

She rose; there was a new energy in her step; she walked quickly across the floor and unbarred the door.

The little cabin on the mountain was lost among the clouds. It was not yet day, but the old woman, with that proclivity to early rising characteristic of advancing years, was already astir. It was in the principal room of the cabin that she slept, and it contained another bed, in which, placed crosswise, were five billet-shaped objects under the quilts, which when awake identified themselves as Peter Kittredge's children. She had dressed and uncovered the embers, and put on a few of the chips which had been spread out on the hearth to dry, and had sat down in the chimney corner. A timid blaze began to steal up, and again was quenched, and only the smoke ascended in its form; then the light flickered out once more, casting a gigantic shadow of her sun-bonnet—for she had donned it thus early—half upon the brown and yellow daubed wall, and half upon the dark ceiling, making a specious stir amidst the peltry and strings of pop-corn hanging motionless thence.

She sighed heavily once or twice, and with an aged manner, and leaned her elbows on her knees and gazed contemplatively at the fire. All at once the ashes were whisked about the hearth as in a sudden draught, and then were still. In momentary surprise she pushed her chair back, hesitated, then replaced it, and calmly settled again her elbows on her knees. Suddenly once more a whisking of the ashes; a cold shiver ran through her, and she turned to see a hand fumbling at the batten shutter close by. She stared for a moment as if paralyzed; her spectacles fell to the floor from her nerveless hand, shattering the lenses on the hearth. She rose trembling to her feet, and her lips parted as if to cry out. They emitted no sound, and she turned with a

terrified fascination and looked back. The shutter had opened; there was no glass; the small square of the window showed the nebulous gray mist without, and defined upon it was Evelina's head, her dark hair streaming over the red shawl held about it, her fair oval face pallid and pensive, and with a great wistfulness upon it; her lustrous dark eyes glittered.

“Mother,” her red lips quivered out.

The old crone recognized no treachery in her heart. She laid a warning finger upon her lips. All the men were asleep.

Evelina stretched out her yearning arms. “Gin him ter me!”

“Naw, naw, Eveliny,” huskily whispered Absalom's mother. “Ye oughter kem hyar an' 'bide with yer husband—ye know ye ought.”

Evelina still held out her insistent arms. “Gin him ter me!” she pleaded.

The old woman shook her head sternly. “Ye kem in, an' 'bide whar ye b'long.”

Evelina took a step nearer the window. She laid her hand on the sill. “Spos'n 'twar Abs'lom whenst he war a baby,” she said, her eyes softly brightening, “an' another woman hed him an' kep' him, 'kase ye an' his dad fell out—would ye hev 'lowed she war right ter treat ye like ye treat me—whenst Abs'lom war a baby?”

Once more she held out her arms.

There was a step in the inner shed-room; then silence.

“Ye hain't got no excuse,” the soft voice urged; “ye know jes how I feel, how ye'd hev felt, whenst Abs'lom war a baby.”

The shawl had fallen back from her tender face; her eyes glowed, her cheek was softly flushed. A sudden terror thrilled through her as she again heard the heavy step approaching in the shed-room. “Whenst Abs'lom war a baby,” she reiterated, her whole pleading heart in the tones.

A sudden radiance seemed to illumine the sad, dun-colored folds of the encompassing cloud; her face shone with a transfiguring happiness, for the hustling old crone had handed out to her a warm, somnolent bundle, and the shutter closed upon the mists with a bang.

“The wind's riz powerful suddint,” Peter said, noticing the noise as he came stumbling in, rubbing his eyes. He went and fastened the shutter, while his mother tremulously mended the fire.

The absence of the baby was not noticed for some time, and when the father's hasty and angry questions elicited the reluctant facts, the outcry for his loss was hardly less bitter among the Kittredges than among the Quimbeys. The fugitives were shielded from capture by the enveloping mist, and when Absalom returned from the search he could do naught but indignantly upbraid his mother.



"SHE FLUNG HER APRON OVER HER HEAD"

She was terrified by her own deed, and cowered under Absalom's wrath. It was in a moral collapse, she felt, that she could have done this thing. She flung her apron over her head, and sat still and silent—a monumental figure—among them. Once, roused by Absalom's reproaches, she made some effort to defend and exculpate herself, speaking from behind the enveloping apron.

"I ain't born no Kittredge nohow," she irreverently asseverated, "an' I never war. An' when Eveliny axed me how I'd hev liked ter hev another 'oman take Abs'lom whenst he war a baby, I couldn't hold out no longer."

"Shucks!" cried Absalom, unfilially; "ye'd aheap better be a-studyin' 'bout'n my good now 'n whenst I war a baby—a-givin' away *my* child ter them Quimbeys; a-h'istin' him out'n the winder!"

She was glad to retort that he was "impident," and to take refuge in an aggrieved silence, as many another mother has done when outmatched by

logic.

After this there was more cheerfulness in her hidden face than might have been argued from her port of important sorrow. "Bes' ter hev no jawin', though," she said to herself, as she sat thus inscrutably veiled. And deep in her repentant heart she was contradictorily glad that Evelina and the baby were safe together down in the Cove.

Old Joel Quimbey, putting on his spectacles, with a look of keenest curiosity, to read a paper which the deputy-sheriff of the county presented when he drew rein by the wood-pile one afternoon some three weeks later, had some difficulty in identifying a certain Elnathan Daniel Kittredge specified therein. He took off his spectacles, rubbed them smartly, and put them on again. The writing was unchanged. Surely it must mean the baby. That was the only Kittredge whose body they could be summoned to produce on the 24th of December before the judge of the circuit court, now in session. He turned the paper about and looked at it, his natural interest as a man augmented by his recognition as an ex-magistrate of its high important legal character.

"Eveliny," he quavered, at once flattered and furious, "dad-burned ef Abs'lom hain't gone an' got out a *habeas corpus* fur the baby!"

The phrase had a sound so deadly that there was much ado to satisfactorily explain the writ and its functions to Evelina, who had felt at ease again since the baby was at home, and so effectually guarded that to kidnap him was necessarily to murder two or three of the vigilant and stalwart Quimbey men. So much joy did it afford the old man to air his learning and consult his code—a relic of his justiceship—that he belittled the danger of losing the said Elnathan Daniel Kittredge in the interest with which he looked forward to the day for him to be produced before the court.

There was a gathering of the clans on that day. Quimbeys and Kittredges who had not visited the town for twenty years were jogging thither betimes that morning on the red clay roads, all unimpeded by the deep mud which, frozen into stiff ruts and ridges here and there, made the way hazardous to the running-gear. The lagging winter had come, and the ground was half covered with a light fall of snow.

The windows of the court-house were white with frost; the weighted doors clanged continuously. An old codger, slowly ascending the steps, and

pushing into the semi-obscurity of the hall, paused as the door slammed behind him, stared at the sheriff in surprise, then fixed him with a bantering leer. The light that slanted through the open court-room door fell upon the official's burly figure, his long red beard, his big broad-brimmed hat pushed back from his laughing red face, consciously ludicrous and abashed just now.

“Hev ye made a find?” demanded the newcomer.

For in the strong arms of the law sat, bolt-upright, Elnathan Daniel Kittredge, his yellow head actively turning about, his face decorated with a grin, and on most congenial terms with the sheriff.

“They're lawin' 'bout'n him in thar “—the sheriff jerked his thumb toward the door. “*Habeas corpus* perceedin's. Dun no ez I ever see a friskier leetle cuss. Durned ef I 'ain't got a good mind ter run off with him myself.”

The said Elnathan Daniel Kittredge once more squirmed round and settled himself comfortably in the hollow of the sheriff's elbow, who marvelled to find himself so deft in holding him, for it was twenty years since his son—a gawky youth who now affected the company at the saloon, and was none too filial—was the age and about the build of this infant Kittredge.

“They hed a reg'lar scrimmage hyar in the hall—them fool men—Quimbey an' Kittredge. Old man Quimbey said suthin' ter Abs'lom Kittredge—I dunno what all. Abs'lom never jawed back none. He jes made a dart an' snatched this hyar leetle critter out'n his mother's arms, stiddier waitin' fur the law, what he summonsed himself. Blest ef I didn't hev ter hold my revolver ter his head, an' then crack him over the knuckles, ter make him let go the child. I didn't want ter arrest him—mighty clever boy, Abs'lom Kittredge! I promised that young woman I'd keep holt o' the child till the law gins its say-so. I feel sorry fur her; she's been through a heap.”

“Waal, ye look mighty pritty, totin' him around hyar,” his friend encouraged him with a grin. “I'll say that fur ye—ye look mighty pritty.”

And in fact the merriment in the hall at the sheriff's expense began to grow so exhilarating as to make him feel that the proceedings within were too interesting to lose. His broad red face with its big red beard reappeared in the doorway—slightly embarrassed because of the sprightly manners of his charge, who challenged to mirth every eye that glanced at him by his toothful grin and his gurgles and bounces; he was evidently enjoying the

excitement and his conspicuous position. He manfully gnawed at his corn-dodger from time to time, and from the manner in which he fraternized with his new acquaintance, the sheriff, he seemed old enough to dispense with maternal care, and, but for his incomplete methods of locomotion, able to knock about town with the boys. The Quimbeys took note of his mature demeanor with sinking hearts; they looked anxiously at the judge, wondering if he had ever before seen such precocity—anything so young to be so old: “He 'ain't never afore 'peared so survigrus—so *durned survigrus* ez he do ter-day,” they whispered to each other.

“Yes, sir,” his father was saying, on examination, “year old. Eats anything he kin git—cabbage an' fat meat an' anything. *Could* walk if he wanted ter. But he 'ain't been raised right”—he glanced at his wife to observe the effect of this statement. He felt a pang as he noted her pensive, downcast face, all tremulous and agitated, overwhelmed as she was by the crowd and the infinite moment of the decision. But Absalom, too, had his griefs, and they expressed themselves perversely.

“He hev been pompered an' fattened by bein' let ter eat an' sleep so much, till he be so heavy ter his self he don't wanter take the trouble ter get about. He *could* walk ennywhar. He's plumb survigrus.”

And as if in confirmation, the youthful Kittredge lifted his voice to display his lung power. He hilariously babbled, and suddenly roared out a stentorian whoop, elicited by nothing in particular, then caught the sheriff's beard, and buried in it his conscious pink face.

The judge looked gravely up over his spectacles. He had a bronzed complexion, a serious, pondering expression, a bald head, and a gray beard. He wore a black broadcloth suit, somewhat old-fashioned in cut, and his black velvet waist-coat had suffered an eruption of tiny red satin spots. He had great respect for judicial decorums, and no Kittredge, however youthful, or survigrus, or exalted in importance by *habeas corpus* proceedings, could “holler” unmolested where he presided.

“Mr. Sheriff,” he said, solemnly, “remove that child from the presence of the court.”

And the said Elnathan Daniel Kittredge went out gleefully kicking in the arms of the law.

The hundred or so grinning faces in the courtroom relapsed quickly into gravity and excited interest. The rows of jeans-clad countrymen seated upon

the long benches on either side of the bar leaned forward with intent attitudes. For this was a rich feast of local gossip, such as had not been so bountifully spread within their recollection. All the ancient Quimbey and Kittredge feuds contrived to be detailed anew in offering to the judge reasons why father or mother was the more fit custodian of the child in litigation.

As Absalom sat listening to all this, his eyes were suddenly arrested by his wife's face—half draped it was, half shadowed by her sun-bonnet, its fine and delicate profile distinctly outlined against the crystalline and frosted pane of the window near which she sat. The snow without threw a white reflection upon it; its rich coloring in contrast was the more intense; it was very pensive, with the heavy lids drooping over the lustrous eyes, and with a pathetic appeal in its expression.

And suddenly his thoughts wandered far afield. He wondered that it had come to this; that she could have misunderstood him so; that he had thought her hard and perverse and unforgiving. His heart was all at once melting within him; somehow he was reminded how slight a thing she was, and how strong was the power that nerved her slender hand to drag his heavy weight, in his dead and helpless unconsciousness, down to the bars and into the safety of the sheltering laurel that night, when he lay wounded and bleeding under the lighted window of the cabin in the Cove. A deep tenderness, an irresistible yearning had come upon him; he was about to rise, he was about to speak he knew not what, when suddenly her face was irradiated as one who sees a blessed vision; a happy light sprang into her eyes; her lips curved with a smile; the quick tears dropped one by one on her hands, nervously clasping and unclasping each other. He was bewildered for a moment. Then he heard Peter gruffly growling a half-whispered curse, and the voice of the judge, in the exercise of his discretion, methodically droning out his reasons for leaving so young a child in the custody of its mother, disregarding the paramount rights of the father. The judge concluded by dispassionately recommending the young couple to betake themselves home, and to try to live in peace together, or, at any rate, like sane people. Then he thrust his spectacles up on his forehead, drew a long sigh of dismissal, and said, with a freshened look of interest, "Mr. Clerk, call the next case."

The Quimbey and Kittredge factions poured into the hall; what cared they for the disputed claims of Jenkins *versus* Jones? The lovers of sensation cherished a hope that there might be a lawless effort to rescue the infant Kittredge from the custody to which he had been committed by the court. The Quimbey watchfully kept about him in a close squad, his pink sun-bonnet, in which his head was eclipsed, visible among their brawny jeans shoulders, as his mother carried him in her arms. The sheriff looked smilingly after him from the court-house steps, then inhaled a long breath, and began to roar out to the icy air the name of a witness wanted within. Instead of a gate there was a flight of steps on each side of the fence, surmounted by a small platform. Evelina suddenly shrank back as she stood on the platform, for beside the fence Absalom was waiting. Timothy hastily vaulted over the fence, drew his “shooting-iron” from his boot-leg, and cocked it with a metallic click, sharp and peremptory in the keen wintry air. For a moment Absalom said not a word. He looked up at Evelina with as much reproach as bitterness in his dark eyes. They were bright with the anger that fired his blood; it was hot in his bronzed cheek; it quivered in his hands. The dry and cold atmosphere amplified the graces of his long curling yellow hair that she and his mother loved. His hat was pushed back from his face. He had not spoken to her since the day of his ill-starred confidence, but he would not be denied now.

“Ye'll repent it,” he said, threateningly. “I'll take special pains fur that.”

She bestowed on him one defiant glance, and laughed—a bitter little laugh. “Ye air ekal ter it; ye have a special gift fur makin' folks repent they ever seen ye.”

“The jedge jes gin him ter ye 'kase ye made him out sech a fibble little pusson,” he sneered. “But it's jes fur a time.”

She held the baby closer. He busied himself in taking off his sun-bonnet and putting it on hind part before, gurgling with smothered laughter to find himself thus queerly masked, and he made futile efforts to play “peep-eye” with anybody jovially disposed in the crowd. But they were all gravely absorbed in the conjugal quarrel at which they were privileged to assist.

“It's jes fur a time,” he reiterated.

“Wait an' see!” she retorted, triumphantly.

“I won't wait,” he declared, goaded; “I'll take him yit; an' when I do I'll clar out'n the State o' Tennessee—see ef I don't!”

She turned white and trembled. “Ye dassent,” she cried out shrilly. “Ye’ll be ‘feared o’ the law.”

“Wait an’ see!” He mockingly echoed her words, and turned in his old confident manner, and strode out of the crowd.

Faint and trembling, she crept into the old canvas-covered wagon, and as it jogged along down the road stiff with its frozen ruts and ever nearing the mountains, she clasped the cheerful Kittredge with a yearning sense of loss, and declared that the judge had made him no safer than before. It was in vain that her father, speaking from the legal lore of the code, detailed the contempt of court that the Kittredges would commit should they undertake to interfere with the judicial decision—it might be even considered kidnapping.

“But what good would that do me—an’ the baby whisked plumb out’n the State? Ef Abs’lom ain’t ‘feared o’ Tim’s rifle, what’s he goin’ ter keer fur the pore jedge with nare weepson but his leetle contempt o’ court—ter jail Abs’lom, ef he kin make out ter ketch him!”

She leaned against the swaying hoop of the cover of the wagon and burst into tears. “Oh, none o’ ye ‘ll do nuthin’ fur me!” she exclaimed, in frantic reproach. “Nuthin’!”

“Ye talk like ‘twar we-uns ez made up sech foolishness ez *habeas corpus* out’n our own heads,” said Timothy. “I ‘ain’t never looked ter the law fur pertection. Hyar’s the pertecter.” He touched the trigger of his rifle and glanced reassuringly at his sister as he sat beside her on the plank laid as a seat from side to side of the wagon.

She calmed herself for a moment; then suddenly looked aghast at the rifle, and with some occult and hideous thought, burst anew into tears.

“Waal, sir,” exclaimed Stephen, outdone, “what with all this hyar daily weepin’ an’ nightly mournin’, I ‘ain’t got spunk enough lef ter stan’ up agin the leetlest Kittredge a-goin’. I ain’t man enough ter sight a rifle. Kittredges kin kem enny time an’ take my hide, horns, an’ tallow ef they air minded so ter do.”

“I ‘lowed I hearn suthin’ a-gallopin’ down the road,” said Tim, abruptly.

Her tears suddenly ceased. She clutched the baby closer, and turned and lifted the flap of the white curtain at the back of the wagon, and looked out with a wild and terror-stricken eye. The red clay road stretched curveless, a

long way visible and vacant. The black bare trees stood shivering in the chilly blast on either side; among them was an occasional clump of funereal cedars. Away off the brown wooded hills rose; snow lay in thin crust-like patches here and there, and again the earth wore the pallid gray of the crab-grass or the ochreous red of the gully-washed clay.

“I don't see nuthin',” she said, in the bated voice of affrighted suspense.

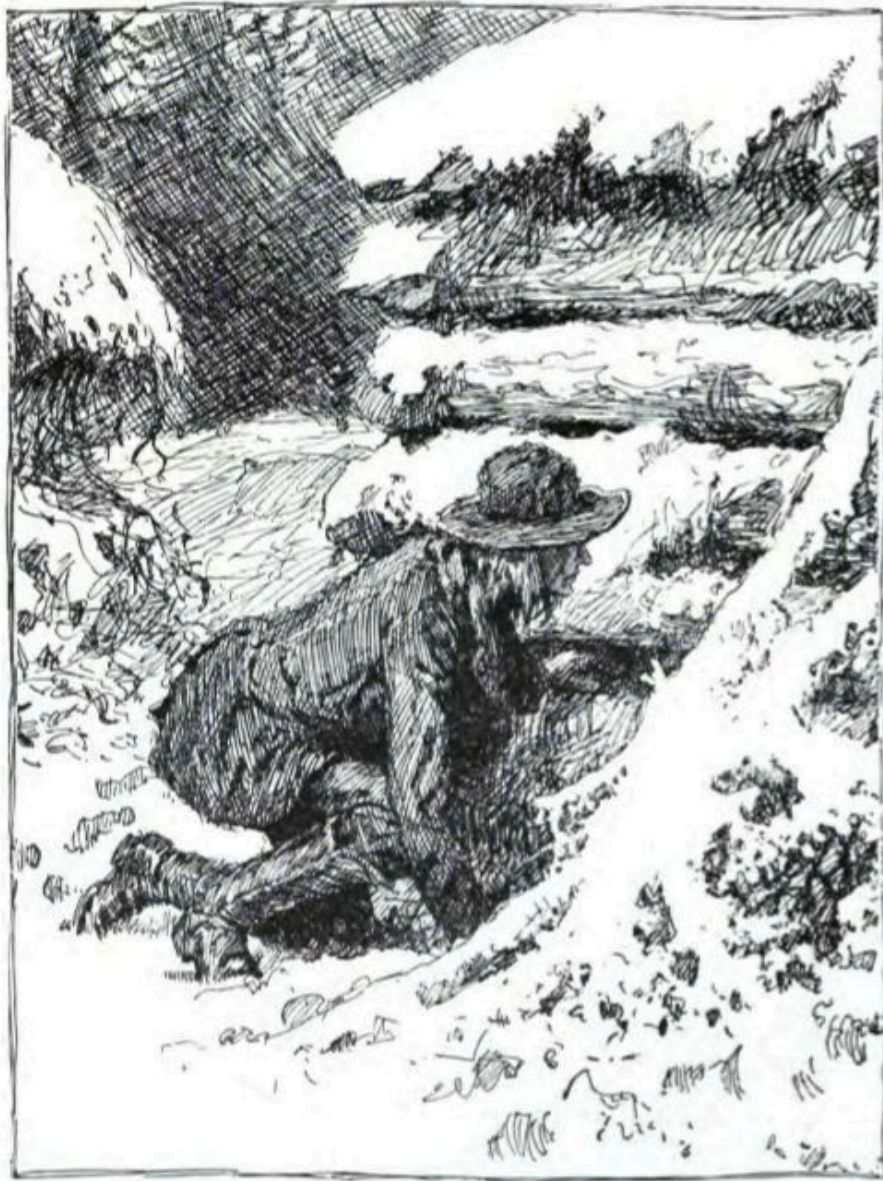
While she still looked out flakes suddenly began to fly, hardly falling at first, but poised tentatively, fluctuating athwart the scene, presently thickening, quickening, obscuring it all, isolating the woods with an added sense of solitude since the sight of the world and the sound of it were so speedily annulled. Even the creak of the wagon-wheels was muffled. Through the semicircular aperture in the front of the wagon-cover the horns of the oxen were dimly seen amidst the serried flakes; the snow whitened the backs of the beasts and added its burden to their yoke. Once as they jogged on she fancied again that she heard hoof-beats—this time a long way ahead, thundering over a little bridge high above a swirling torrent, that reverberated with a hollow tone to the faintest footfall. “Jes somebody ez hev passed we-uns, takin' the short-cut by the bridle-path,” she ruminated. No pursuer, evidently.

Everything was deeply submerged in the snow before they reached the dark little cabin nestling in the Cove. Motionless and dreary it was; not even a blue and gauzy wreath curled out of the chimney, for the fire had died on the hearth in their absence. No living creature was to be seen. The fowls were huddled together in the hen-house, and the dogs had accompanied the family to town, trotting beneath the wagon with lolling tongues and smoking breath; when they nimbly climbed the fence their circular footprints were the first traces to mar the level expanse of the doorway. The bare limbs of the trees were laden; the cedars bore great flower-like tufts amidst the interlacing fibrous foliage. The eaves were heavily thatched; the drifts lay in the fence corners.

Everything was covered except, indeed, one side of the fodder-stack that stood close to the barn. Evelina, going out to milk the cow, gazed at it for a moment in surprise. The snow had slipped down from it, and lay in rolls and piles about the base, intermixed with the sere husks and blades that seemed torn out of the great cone. “Waal, sir, Spot mus' hev been hongry fur

true, ter kem a-foragin' this wise. Looks ez ef she hev been fairly a-burrowin."

She turned and glanced over her shoulder at tracks in the snow—shapeless holes, and filling fast—which she did not doubt were the footprints of the big red cow, standing half in and half out of the wide door, slowly chewing her cud, her breath visibly curling out on the chill air, her great lips opening to emit a muttered low. She moved forward suddenly into the shelter as Evelina started anew toward it, holding the piggin in one hand and clasping the baby in the other arm.



"HE STOLE NOISELESSLY IN THE SOFT SNOW"

Evelina noted the sound of her brothers' two axes, busy at the wood-pile, their regular cleavage splitting the air with a sharp stroke and bringing a crystalline shivering echo from the icy mountain. She did not see the crouching figure that came cautiously burrowing out from the stack. Absalom rose to his full height, looking keenly about him the while, and stole noiselessly in the soft snow to the stable, and peered in through a crevice in the wall.

Evelina had placed the piggin upon the straw-covered ground, and stood among the horned cattle and the huddling sheep, her soft melancholy face half shaded by the red shawl thrown over her head and shoulders. A tress of her brown hair escaped and curled about her white neck, and hung down over the bosom of her dark-blue homespun dress. Against her shoulder the dun-colored cow rubbed her horned head. The baby was in a pensive mood, and scarcely babbled. The reflection of the snow was on his face, heightening the exquisite purity of the tints of his infantile complexion. His gentle, fawn-like eyes were full of soft and lustrous languors. His long lashes drooped over them now, and again were lifted. His short down of yellow hair glimmered golden against the red shawl over his mother's shoulders.

One of the beasts sank slowly upon the ground—a tired creature doubtless, and night was at hand; then another, and still another. Their posture reminded Absalom, as he looked, that this was Christmas Eve, and of the old superstition that the cattle of the barns spend the night upon their knees, in memory of the wondrous Presence that once graced their lowly place. The boughs rattled suddenly in the chill blast above his head; the drifts fell about him. He glanced up mechanically to see in the zenith a star of gracious glister, tremulous and tender, in the rifts of the breaking clouds.

“I wonder ef it air the same star o' Bethlehem?” he said, thinking of the great sidereal torch heralding the Light of the World. He had a vague sense that this star has never set, however the wandering planets may come and go in their wide journeys as the seasons roll. He looked again into the glooming place, at the mother and her child, remembering that the Lord of heaven and earth had once lain in a manger, and clung to a humble earthly mother.

The man shook with a sudden affright. He had intended to wrest the child from her grasp, and mount and ride away; he was roused from his reverie by the thrusting upon him of his opportunity, facilitated a hundredfold. Evelina had evidently forgotten something. She hesitated for a moment; then put the baby down upon a great pile of straw among the horned creatures, and, catching her shawl about her head, ran swiftly to the house.

Absalom moved mechanically into the doorway. The child, still pensive and silent, and looking tenderly infantile, lay upon the straw. A sudden pang of pity for her pierced his heart: how her own would be desolated! His

horse, hitched in a clump of cedars, awaited him ten steps away. It was his only chance—his last chance. And he had been hardly entreated. The child's eyes rested, startled and dilated, upon him; he must be quick.

The next instant he turned suddenly, ran hastily through the snow, crashed among the cedars, mounted his horse, and galloped away.

It was only a moment that Evelina expected to be at the house, but the gourd of salt which she sought was not in its place. She hurried out with it at last, unprescient of any danger until all at once she saw the footprints of a man in the snow, otherwise untrodden, about the fodder-stack. She still heard the two axes at the wood-pile. Her father, she knew, was at the house.

A smothered scream escaped her lips. The steps had evidently gone into the stable, and had come out thence. Her faltering strength could scarcely support her to the door. And then she saw lying in the straw Elnathan Daniel, beginning to babble and gurgle again, and to grow very pink with joy over a new toy—a man's glove, a red woollen glove, accidentally dropped in the straw. She caught it from his hands, and turned it about curiously. She had knit it herself—for Absalom!

When she came into the house, beaming with joy, the baby holding the glove in his hands, the men listened to her in dumfounded amaze, and with significant side glances at each other.

“He wouldn't take the baby whenst he hed the chance, 'kase he knowed 'twould hurt me so. An' he never wanted ter torment me—I reckon he never *did* mean ter torment me. An' he did 'low wunst he war sorry he spited dad. Oh! I hev been a heap too quick an' spiteful myself. I hev been so terrible wrong! Look a-hyar; he lef' this glove ter show me he hed been hyar, an' could hev tuk the baby ef he hed hed the heart ter do it. Oh! I'm goin' right up the mounting an' tell him how sorry I be.”

“Toler'ble cheap!” grumbled Stephen—“one old glove. An' he'll git Elnathan Daniel an' ye too. A smart fox he be.”

They could not dissuade her. And after a time it came to pass that the Quimbey and Kittredge feuds were healed; for how could the heart of a grandfather withstand a toddling spectacle in pink calico that ran away one day some two years later, in company with an adventurous dog, and came down the mountain to the cabin in the Cove, squeezing through the fence rails after the manner of his underfoot world, proceeding thence to the house, where he made himself very merry and very welcome?



OLD QUIMBEY AND HIS GRANDSON

And when Tim mounted his horse and rode up the mountain with the youngster on the pommel of the saddle, lest Evelina should be out of her mind with fright because of his absence, how should he and old Mrs.

Kittredge differ in their respective opinions of his vigorous growth, and grace of countenance, and peartness of manner? On the strength of this concurrence Tim was induced to “‘light an' hitch,” and he even sat on the cabin porch and talked over the crops with Absalom, who, the next time he went to town, stopped at the cabin in the Cove to bring word how El-nathan Daniel was “thrivin’.” The path that Evelina had worn to the crag in those first homesick days on the mountain rapidly extended itself into the Cove, and widened and grew smooth, as the grandfather went up and the grandson came down.

*** END OF THE PROJECT GUTENBERG EBOOK HIS "DAY IN
COURT" ***

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